



7 INTERGOVERNMENTAL COORDINATION

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Kissimmee 2040 Comprehensive Plan

Intergovernmental Coordination

prepared for

City of Kissimmee

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GOALS, OBJECTIVES, AND POLICIES

This section stipulates goals, objectives, and implementing policies for the Intergovernmental Coordination Element pursuant to §163.3177(6)(h), Florida Statutes.

GOAL 7.1 PROVIDE MECHANISMS FOR IMPROVED INTERGOVERNMENTAL COORDINATION

The City shall undertake actions necessary to establish governmental relationships designed to maintain and improve the coordination of public and private entities involved in development activities, growth management, and resource conservation.

OBJECTIVE 7.1.1 PROCESS FOR INTERGOVERNMENTAL COORDINATION.

Systematically coordinate the development and implementation of the City's Comprehensive Plan with the plans and programs of Osceola County, the School District of Osceola County, MetroPlan Orlando, LYNX, and other federal, state, regional, local, and non-governmental entities through formal and informal means.

POLICY 7.1.1.1: RESPONSIBLE ENTITY FOR INTERGOVERNMENTAL COORDINATION.

The City Commission shall continue to be responsible for ensuring an effective intergovernmental coordination program for the City, including maintenance of a Comprehensive Plan consistent with the State Comprehensive Plan and East Central Florida Regional Planning Council Regional Policy Plan. The City Manager or his designated representative shall represent the City in coordinating matters of common interest on technical coordination committees. These forums shall be used to prevent or eliminate duplication of governmental activities.

POLICY 7.1.1.2: COORDINATION WITH ADJACENT JURISDICTIONS.

The City will continue to assist Osceola County and Orange County with coordinated planning for unincorporated areas within one and one-half miles of the City limits. The City shall consider compatibility with adopted land use plans of adjacent local governments and will request copies of proposed amendments within this area for the City's review to promote consistency with the City's adopted Plan.

POLICY 7.1.1.3: COORDINATION OF GROWTH MANAGEMENT ISSUES.

The City shall continue to pursue resolution of growth management issues with impacts transcending the City's political jurisdiction, by participating on ad hoc technical coordination committees, through joint technical analysis of mutual problems and issues, and through structures for conflict resolution that are designed to further the goals,



objectives, policies, and adopted levels of service. Issues to be pursued include, but are not limited to the following:

1. *Land Use Planning Within and Adjacent to the Unincorporated Urban Area.* The City shall coordinate with Osceola County in managing land uses within unincorporated Osceola County's urban growth boundary. The City's ability to coordinate adopted City and County levels of service would be adversely impacted by independently derived land use policies within the urban planning area.
2. Therefore, the City shall continue to coordinate with the County in drafting interlocal agreements which provide a management framework for a variety of growth management issues within the County's urban growth boundary.
3. *Urban Area Water and Wastewater Services.* The Toho Water Authority (TWA) shall continue to coordinate and manage issues surrounding delivery of potable water and wastewater services within the City of Kissimmee and the unincorporated urban area established pursuant to Ch. 180 F.S. Various interlocal agreements between the City and Osceola and Orange counties, the Reedy Creek Improvement District, Celebration Community Development District, TWA, the City of St. Cloud, and Orange-Osceola Utilities as may be hereafter amended, shall continue to serve as medium for resolving issues surrounding levels of service, rate structures, and related issues.
4. The City of Kissimmee shall periodically update its Water Supply Facilities Work Plan (Work Plan) outlined in Chapter 4A: Potable Water Sub-Element of the Public Facilities Element to be consistent with the most recent Kissimmee Basin Water Supply Plan Update from the South Florida Water Management District (SFWMD), and consistent with policies in the Public Facilities Element. Maintaining and amending the Work Plan shall be a cooperative effort between TWA and the SFWMD.
5. *Solid Waste Disposal.* The City shall continue to coordinate with Osceola County's solid waste management program, privately contracted waste haulers, and in accordance with Chapter 4E: Solid Waste Sub-Element of the Public Facilities Element.
6. *Transportation.* The City shall continue to coordinate area-wide transportation issues with Osceola County, Orange County, the Orlando Urban Area Metropolitan Planning Organization (MPO) aka MetroPlan Orlando, the Central Florida Regional Transportation Authority aka LYNX, the Florida DOT, and any other entities providing transportation facilities and service within the City, in accordance with the goals, objectives and policies of Chapter 2: Transportation Element.

7. *Surface Water and Stormwater Management.* The City shall continue to coordinate resolution of water management issues transcending local jurisdictional boundaries with the South Florida Water Management District, the Tohopekaliga Water Authority (TWA), as well as through joint City-County review of land use policy and development proposals having potential impacts on stormwater and surface water management. Issues surrounding potential impacts of existing and proposed development on water quality and quantity, particularly on Lake Tohopekaliga, Mill Slough and Shingle Creek, shall be addressed.
8. *Housing.* The City shall continue to coordinate with the Department of Housing and Urban Development, the Florida Housing Finance Corporation, and other state and federal housing entities in order to achieve assistance through available housing and neighborhood infrastructure improvement programs, including but not limited to the Community Development Block Grant Program.
9. *Recreation & Open Space Systems and Joint Use of Public School Parks.* The City shall continue to work with the School District of Osceola County, Osceola County, the State Department of Environmental Protection, the South Florida Water Management District and other appropriate entities to further implement the goals, objectives and policies of the Conservation Element and the Recreation and Open Space Element.
10. *Disaster Preparedness.* The City shall continue to coordinate with the East Central Florida Regional Planning Council, the Osceola County Public Safety Department and other governmental entities as appropriate in maintaining and updating plans and policies for emergency preparedness in order to protect public and private property and human lives from the effects of natural disaster.
11. *Population Projections.* The City shall coordinate with Osceola County, the City of St. Cloud, MetroPlan, the South Florida Water Management District, the East Central Florida Planning Council, Tohopekaliga Water Authority, and the Osceola County School Board in developing population projections for the purposes of decision-making and for planning future public facility needs.
12. *School Siting.* The City shall coordinate with the Osceola County School Board with regards to the siting of schools and school facilities, and the planning and development of new schools in accordance with Chapter 1: Future Land Use Element.
13. *Siting of Facilities with Countywide Significance.* The City shall continue to coordinate with Osceola County and other governmental entities in addressing issues related to the siting of facilities with countywide significance (including locally unwanted land



uses). The City shall accomplish this coordination through informal ad hoc technical committees, interlocal agreements, or joint planning agreements or a combination of all three approaches.

POLICY 7.1.1.4: TOHOPEKALIGA WATER AUTHORITY INTERLOCAL AGREEMENT.

The City of Kissimmee and Osceola County entered into an Interlocal Agreement relating to the establishment of the Tohopekaliga Water Authority (TWA), dated March 1, 2003, in order to develop a cooperative approach to provide water and wastewater services and facilities to the City and the County. This Interlocal Agreement creates the mechanisms by which the City, County, and TWA will implement the program set forth in the Ten-Year Water Supply Facilities Work Plan to ensure established levels of service are achieved and maintained for water and wastewater services. The City will continue to work with TWA to implement this agreement to provide water and wastewater services to the City.

POLICY 7.1.1.5: CITY PARTICIPATION ON THE TOHOPEKALIGA WATER AUTHORITY BOARD OF SUPERVISORS.

The City shall continue to appoint representatives to the Tohopekaliga Water Authority Board of Supervisors.

POLICY 7.1.1.6: COORDINATION WITH REGIONAL WATER RESOURCES PLANNING EFFORTS.

The City shall be proactive in regional water resources planning efforts through enhanced coordination with adjacent jurisdictions, water providers, and regional water management districts as provided for in Chapter 4A: Potable Water Sub-Element of the Public Facilities Element of the City's Comprehensive Plan.

OBJECTIVE 7.1.2: CONFLICT RESOLUTION.

The City shall coordinate with other public entities for resolving conflicts among Osceola County, the City of St. Cloud, the School District of Osceola County, and other special purpose districts or entities that provide services but do not have regulatory authority over the use of land.

POLICY 7.1.2.1: INFORMAL MEDIATION PROCESS.

The City and Osceola County shall work to establish an informal mediation process for solving intergovernmental coordination problems in a timely manner among local governments and other units of local governments providing services, or those entities without regulatory authority over the use of land.

POLICY 7.1.2.2: COORDINATION WITH THE EAST CENTRAL FLORIDA REGIONAL PLANNING COUNCIL.

Where the City is unable to resolve intergovernmental conflicts through local and/or informal conflict resolution media, or due to the lack of a formalized conflict resolution agreement, the City Commission shall determine if it is appropriate for the respective issue to be mediated through the East Central Florida Regional Planning Council or another independent mediation group as may be agreed upon by the parties in conflict. The City shall not waive any rights under the provisions of Chapter 164, Florida Statutes, or its successor provision.

OBJECTIVE 7.1.3: INFRASTRUCTURE SYSTEMS AND LEVEL OF SERVICE STANDARDS.

The City shall continue to coordinate opportunities and challenges regarding achievement and maintenance of quality and level of service standards for existing and proposed public facilities within the City and adjacent unincorporated areas inside the City's expansion area. These infrastructure opportunities and challenges shall be coordinated with all State, regional, or local agencies, or private entities with responsibility in achieving Level of Service Standards and having existing or proposed future responsibility for the operation and maintenance of such facilities. The objective shall be achieved through the following policies and through participation by the City on various technical committees involved in such issues.

POLICY 7.1.3.1: COORDINATE REGIONAL/SUB-REGIONAL INFRASTRUCTURE ISSUES.

The City shall consider entering into cooperative agreements with adjacent municipalities and counties where such agreements are operationally, fiscally, or environmentally beneficial. The City will continue to work with Osceola County, the School District of Osceola County, and the City of St. Cloud through a Technical Working Group (TWG) in addressing issues surrounding regional or sub-regional infrastructure systems. Issues that shall be coordinated include, but shall not be limited to, water supply planning; wastewater and potable water systems improvements; maintenance of the fire prevention and emergency medical service; improvements to State Roads and County Roads; solid waste and hazardous waste disposal; stormwater and surface water management issues; and planning for projected parks and recreational facilities. The City shall continue to pursue innovative organizational structures that promote cost effective regional or sub-regional perspectives in meeting needs that transcend the boundaries of the City.

POLICY 7.1.3.2: COOPERATION WITH THE EAST CENTRAL FLORIDA REGIONAL PLANNING COUNCIL AND METROPLAN ORLANDO.

The City shall continue to cooperate with the East Central Florida Regional Planning Council (ECFRPC) and MetroPlan Orlando in the review of regional policies and standards requiring coordination with local governments to ensure consistency among



local, county, regional and state plans and policies. Foremost, among such issues shall be assessment of standards for adequate levels of service for regional transportation facilities. However, the City of Kissimmee shall coordinate with the ECFRPC in all matters of regional significance in which the ECFRPC desires City input, including but not limited to, comprehensive plan reviews, and intergovernmental coordination reviews of projects with regional significance.

POLICY 7.1.3.3: CAPITAL IMPROVEMENT PROGRAM COORDINATION.

During preparation of the annual capital improvements program, the City shall evaluate all applicable State, regional, and local programs proposed for funding in order to promote consistency with the Comprehensive Plan. Analysis of alternative improvement programs shall include consideration of cost effectiveness and operational efficiency in order to promote efficiency and economy in governments as mandated in the State Plan.

OBJECTIVE 7.1.4: MULTI-JURISDICTIONAL ENVIRONMENTAL ISSUES.

The City shall continue to coordinate with Osceola County, Orange County, the South Florida Water Management District, the East Central Florida Regional Planning Council, State and federal agencies having related jurisdictional responsibilities, and other organizations as appropriate to ensure consistent and coordinated management of environmental systems transcending jurisdictional boundaries.

POLICY 7.1.4.1: LIAISON WITH PERMITTING AGENCIES.

The City should continue to maintain formal liaisons with County, State, and federal agencies that have permitting responsibility within the City of Kissimmee.

POLICY 7.1.4.2: MANAGEMENT OF LAKE TOHOPEKALIGA, SHINGLE CREEK AND MILL SLOUGH.

The City shall continue to participate with Osceola County, the South Florida Water Management District, the State Department of Environmental Protection, and other environmental protection entities in resolving issues surrounding enhanced water quality, including, but not limited to, assessing development impacts and resource conservation implications. Water quality and quantity measures adopted by the SFWMD will be enforced by the City.

OBJECTIVE 7.1.5: DATA BASE MANAGEMENT AND COORDINATION.

The City shall maintain an appropriate data base in order to further the goals, objectives, and policies of the Comprehensive Plan.

POLICY 7.1.5.1: GENERATE NECESSARY DATA.

The City shall predicate growth management policies and land development strategies upon quantifiable data, where appropriate, that are generally consistent with recognized area-wide projections and forecasts. Where inconsistencies may be identified at a future point in time, the City shall coordinate respective technical issues at the staff level. In conflicts are not thereby resolved, the City shall use conflict resolution media for the purposes of achieving reconciliation.

POLICY 7.1.5.2: CONSIDERATION OF AREAWIDE DATA RESOURCES.

The City shall collect and analyze data developed by Osceola County, Osceola County School Board, and other public entities providing services but not having regulatory authority over the use of land.

OBJECTIVE 7.1.6: JOINT PLANNING AREAS.

The City will consider entering into a Joint Planning Agreement (JPA) with Osceola County to address items of mutual interest including the protocols for annexing land into the City, and for the joint review of comprehensive plan amendments, rezonings, and other changes to land uses that may affect both jurisdictions.

POLICY 7.1.6.1: ANNEXATION CRITERIA.

Any joint planning area (JPA) agreement entered into between the City and County shall contain specific criteria for the annexation of land. Criteria could include but not be limited to the timing of annexations; coordination of land use designations; the timing of infrastructure improvements such as transportation, water, wastewater, drainage, recreation, and public safety facilities, and other issues determined to be important within the JPA.

POLICY 7.1.6.2: COORDINATION OF FUTURE LAND USES.

When the City annexes lands within a joint planning area (JPA), future land use designations shall be consistent with Objective 1.1.10 of the Future Land Use Element. Additionally, the JPA may provide additional guidance regarding the timing and joint review of proposed future land use designation amendments.

POLICY 7.1.6.3: COORDINATION OF LAND DEVELOPMENT PROPOSALS.

A joint planning area (JPA) agreement shall provide the City and County with the opportunity to review development proposals within the JPA with regard to comprehensive plan consistency impacts on urban services, and other issues that may impact the interests of either the City or the County.



POLICY 7.1.6.4: CONFLICT RESOLUTION.

A joint planning area (JPA) agreement shall include provisions for resolving conflicts over development proposals within the JPA. The City will, to the extent practicable, time actions so as to maximize intergovernmental coordination, communication, and provision of public facilities.

OBJECTIVE 7.1.7: TEN YEAR WATER SUPPLY FACILITIES WORK PLAN.

The City shall periodically update its Ten Year Water Supply Facilities Work Plan consistent with the South Florida Water Management District regional water supply plan, and consistent with policies in Chapter 4: Public Facilities Element.

POLICY 7.1.7.1: AGENCY COOPERATION TO MAINTAIN WORK PLAN.

Maintaining and amending the Water Supply Facilities Work Plan shall be a cooperative effort between the City, Tohopekaliga Water Authority (TWA), and the South Florida Water Management District.

POLICY 7.1.7.2: CONSISTENCY WITH REGIONAL PLANS.

The Water Supply Facilities Work Plan shall be consistent with the most recently adopted Kissimmee Basin Regional Water Supply Plan Update from the South Florida Water Management District.

DATA, INVENTORY, AND ANALYSIS

INTRODUCTION

In order to successfully implement the City's vision, a host of governmental and non-governmental entities must coordinate their activities and work together for the common good. This chapter describes the relationships the City has with other entities and organizations, and identifies planning agreements and initiatives the City is engaged in to provide services and maintain a safe and healthy local environment.

EXISTING INTERGOVERNMENTAL COORDINATION

This section provides an inventory of governmental entities and agencies with formal or informal relationships with the City of Kissimmee.

LOCAL AND REGIONAL ENTITIES

Coordination among entities whose primary focus is local or regional is essential for the continuation and implementation of the City's vision and adopted goals. While regional entities provide a means for greater interaction and cooperation throughout the Orlando Metro Area, special districts and local entities, especially Osceola County, have more direct and immediate interactions with the City on a daily basis. This close interaction allows, among other things, for the reduction of potential conflicts in the continuous provision of public services.

ADJACENT LOCAL GOVERNMENTS

The City of Kissimmee is surrounded by unincorporated portions of Osceola County to the north, east, southwest, and west. Lake Tohopekaliga lies to the City's immediate south. The City coordinates its growth management program with Osceola County and actively participates on various ad hoc Osceola County advisory groups to the County Commission.



The City has coordinated a number of major issues with the County, primarily through interlocal agreements (ILAs) and informal administrative functions. These coordination items include annexations, transportation improvements, fire protection services and emergency management response, and recreation services. The City and the County have also worked closely for the passage of the additional one and a half cent sales tax to increase local revenues, as well as legislative issues, economic development and housing initiatives, and for the protection of natural resources along Shingle Creek with the Shingle Creek Regional Park.



The City is also adjacent to portions of southern unincorporated Orange County. The City coordinates with Orange County regarding Flora Ridge, and water quality challenges and opportunities associated with Shingle Creek.

SPECIAL DISTRICTS

The Community Redevelopment Agency (CRA) is one of two special taxing districts located within the corporate limits of the City of Kissimmee. There are two Community Redevelopment Areas (CRAs) in the City:

- The Downtown Community CRA is in the downtown area of Kissimmee generally from the lakefront area north to US 192/Vine Street, and from John Young Parkway east to the CSX railroad tracks.
- The Vine Street CRA is located along the Vine Street corridor approximately a ¼-mile north and ¼-mile south of the corridor for the entire city limits.

The CRA uses tax increment financing as a major source of funding for various capital projects and economic development efforts for Vine Street and the downtown's business and residential districts. Other funding mechanisms the CRA uses include grants and local option sales tax collections.

The CRA is headed by a manager employed by the City and the City Commission serves as the advisory board that meets monthly regarding CRA activities and plans.

SCHOOL DISTRICT OF OSCEOLA COUNTY

The Osceola County School Board is authorized through statutes enacted by the Florida Legislature, and residents of the City help fund public school operations through an ad valorem tax assessment. The City, other local governments in the County, coordinate with the School District regarding school locations and the planning of school sites and the facilities needed to support them.

The School Board and the City signed an interlocal agreement in October 1998 that promotes coordination of school site development from the long-range planning stage through the site layout stage. Among the topics addressed in that agreement are: (1) coordination of planning for residential development; (2) coordination and selection of school locations; (3) coordination of planning in acquisition of schools; (4) purchasing and leasing of educational facilities other than schools; (5) comprehensive planning and zoning for educational facilities; (6) coordination of site planning for educational facilities; (7) review and processing costs; (8) compliance with State laws; (9) off-site improvements for expanded sites; and (10) joint-use of facilities and sharing of resources.

An updated agreement signed in July 2009 recognizes the need for coordination of residential development activity and school facilities planning. This interlocal agreement (ILA) also references the

master interlocal agreement between the School Board and the City regarding the sharing and co-location of educational and recreational facilities. The City of Kissimmee maintains relations with the School Board through a staff-level working group.

In addition, the City and the School Board have entered into other agreements (along with the City of St. Cloud and Osceola County) related to collection of impact fees, extension and re-distribution of the one cent sales tax approved by voters, an economic development incentive program, and the selection of a lobbyist to promote the interests of the four government bodies in state legislative issues. Additionally, the Flora Ridge Educational Facilities Benefit District levies non-ad valorem assessments for the construction and maintenance of elementary school facilities.

TOHOPEKALIGA WATER AUTHORITY

Established in October 2003 by a special act of the Florida legislature, the Tohopekaliga Water Authority (TWA) is the largest provider of water, wastewater, and reclaimed water services in Osceola County. The Authority was established for the sole purpose of providing regional stewardship over water resources in Osceola County. TWA took over all water, wastewater, and reclaimed water services originally provided by the City to its residents.

The TWA is governed by a six-member board of supervisors responsible for approving all operating policies and the nearly \$124 million operating budget. The City appoints one member to the board of supervisors.

SOUTH FLORIDA WATER MANAGEMENT DISTRICT

South Florida Water Management District (SFWMD), created by Chapter 25270 Laws of Florida (1949), is a multi-county independent special district responsible for flood control and water conservation in the South Florida region. The SFWMD is divided into five water supply planning areas, with the City located in the Upper Kissimmee Basin near the District's northernmost boundary in Orange County.

The SFWMD has regulatory authority over the use of land and may require administrative review and permitting of development proposals pursuant to state statute and the Florida Administrative Code. A development proposal may be required to obtain a management and storage of surface water permit, or construction permit pursuant to relevant State statutes and codes. The SFWMD Department of Resource Management has primary responsibility for coordination of these permitting procedures, and the City's Community Development Director (or designee) remains the principal liaison with the SFWMD.

The District is also responsible for coordinating with the City regarding water supply planning. In the City's case, since TWA is the water supplier, the City must coordinate with the District and TWA regarding maintenance of adequate water supplies through the planning period. The District also



encourages water conservation, particularly through the use of alternative water supplies, for which the City and TWA will continue to coordinate.

EAST CENTRAL FLORIDA REGIONAL PLANNING COUNCIL

The East Central Florida Regional Planning Council (ECFRPC) is a public planning agency that serves Brevard, Lake, Marion, Orange, Osceola, Seminole, Sumter, and Volusia counties and their cities. The ECFRPC advocates for cooperative planning efforts at the regional and sub-regional levels, and to otherwise bring together the public and private sectors to resolve issues of regional interest. The activities of the ECFRPC are overseen by a 32 member board of local elected officials and Governor appointed citizens.

The ECFRPC's current work program includes specific regional planning initiatives including the efforts associated with the MyRegion.org regional visioning activity, which provided development scenarios of the Orlando Metro Area through 2060. The ECFRPC also coordinates for emergency and hurricane response planning, management of the Lake Apopka and Wekiva River basins, and for lake protection. Other ongoing regional programs include an affordable housing information clearinghouse, power plants and other types of regional-scale facilities.

The ECFRPC is assisting the City and the County regarding the locations and designations of greenways and trails and the development of a county-wide trails system. The City Community Development Director, or their designee, is the City's principal liaison on technical issues involving the City's Comprehensive Plan and regional planning activities. The Planning Advisory Board and the City Commission maintain responsibility for managing policy issues surrounding regional planning activities.



METROPLAN ORLANDO

MetroPlan Orlando is the region's Metropolitan Planning Organization (MPO). MetroPlan is responsible for comprehensive transportation planning throughout the Orlando metropolitan area, and is comprised of elected officials from local governments located within that area. The City of Kissimmee is represented on the MetroPlan board by one of its elected officials, as appointed by the City Commission. Through comprehensive transportation planning procedures and processes, MetroPlan develops the Long Range Transportation Plan, from which a Transportation Improvement Program is developed and adopted. MetroPlan also considers bicycle, pedestrian, mass transportation, and airport facilities in its planning efforts.

To provide MetroPlan with technical assistance in its decision-making process, a Transportation System Management & Operations Advisory Committee (TSMO) has been established to include professional input from local and county government engineering and planning staffs, FDOT district offices, and other agencies. Staff members from the City's Community Development Department, Public Works, and the Engineering Department represent the City on MetroPlan's TSMO, Community Advisory Committee, and the Technical Advisory Committee.

CENTRAL FLORIDA REGIONAL TRANSPORTATION AUTHORITY

The Central Florida Regional Transportation Authority, or LYNX, provides mass transit services in the City and within the greater Orlando Metro area. The City shares a portion of its gas tax revenue with LYNX in return for transit services for residents and visitors. The City coordinates with LYNX regarding various mass transit issues and the development of new routes within the City.

Commuter rail is planned to be provided to Kissimmee in the future and the City coordinates with various transportation and agencies for the stations proposed Downtown and near Poinciana. The Central Florida Commuter Rail Commission (CFCRC) oversee SunRail and consists of representatives from the five funding agencies.

KISSIMMEE UTILITY AUTHORITY

The Kissimmee Utility Authority (KUA) continues to provide electrical power service to area residents, and the City's power system is connected to the statewide electric grid. In the late 1990's KUA separated from the City's pension plan, and other financial ties are limited, in recognition of the changing climate for electrical service providers. KUA is still under control of the City Commission, in that it is run by a Board appointed by the City Commission. KUA continues to annually submit a capital and operating budget to the City Commission.

SOLID WASTE SERVICES

Although the City provides residential solid waste collection services, it maintains franchise agreements for commercial solid waste collection services within the City. Wastes collected in the City are deposited at the J.E.D. Solid Waste Management Facility, operated by Omni Waste of Osceola County. This private landfill facility in Holopaw is also the deposition site for wastes collected throughout Osceola County. The City, the County, and the City of St. Cloud maintain an ILA for the continued deposition of wastes at this facility.

NATURAL GAS SERVICES

The City of Kissimmee maintains a franchise agreement with Peoples Gas, a subsidiary of TECO Energy Incorporated, to supply residential, commercial, and industrial natural gas demands within its corporate limits.



STATE AGENCIES AND ENTITIES

A number of State agencies provide regulatory services within and around the City, which help maintain the character and quality of the community and local environment, as well as natural and historic resources. The City uses the expertise of these agencies in an advisory capacity. Additionally, local development regulations require that applicants for development coordinate with City staff and staff from the agencies below whenever issues arise during the development approval process.

Major federal agencies with which the City of Kissimmee coordinates include the Federal Aviation Administration (FAA), the Department of Housing and Urban Development (HUD), the Environmental Protection Agency (EPA), the U.S. Army Corps of Engineers, and the Bureau of the Census.



FLORIDA DEPARTMENT OF ECONOMIC OPPORTUNITY

As the State Land Planning Agency, the Florida Department of Economic Opportunity (DEO) provides technical assistance to local governments with respect to the following service areas: 1) rural and urban small business assistance and economic development; 2) community planning; 3) assistance programs for low-income Floridians; and 4) special district information. DEO administers a variety of grant programs including those focused on infrastructure, economic development, housing rehabilitation, and revitalization.

The City of Kissimmee coordinates with DEO in maintaining the adopted Comprehensive Plan, pursuant to Chapter 163, F.S. The City Community Development Director, or designee, serves as principal liaison on comprehensive plan activities, including typical amendments to the plan, Evaluation and Appraisal Reports (EAR), and EAR-based Plan amendments.

FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION

The Florida Department of Environmental Protection (DEP) is among the most diverse state agencies, and is responsible for regulatory programs, land and recreation, and planning and management.

The DEP seeks to preserve the quality of State land, water, and air resources through the regulation of industrial and household wastes, hazardous wastes, air pollution emission, solid waste disposal, dredge and fill activities, water quality and quantity, and alterations to wetlands and other environmentally sensitive areas.

The DEP is also the State permitting agency having environmental regulatory authority over the use of land within waters of the State. Construction activities, including dock and pier construction, involving

dredging and filling of Lake Tohopekaliga, Mill Slough, Shingle Creek, or any channel or drainage canal within the City must receive dredge and fill permits from DEP prior to project commencement. The Orlando district office, is responsible for the coordination of all permit applications, and the City Community Development Director (or designee) serves as the City's principal liaison with the DEP.

The Division of Natural Resources protects and conserves Florida's natural resources and manages State owned lands, and is responsible for the state's Florida Forever program. Through this program, sensitive land is purchased for conservation and recreation purposes, preserving them from future development. Lands within Shingle Creek Regional Park were secured through this program.

FLORIDA DEPARTMENT OF TRANSPORTATION

The Florida Department of Transportation (FDOT) directs transportation planning functions and project coordination for Florida's transportation systems. The FDOT has authority to direct the design, construction, maintenance, and related activities of the Florida Highway System, and in particular the Strategic Intermodal System (SIS). The SIS includes transportation facilities that are of particular importance to the movement of people and goods within the State.

The FDOT maintains a measure of regulatory authority over the use of lands along State roads, including setting design standards for curb cuts on the State's highway system. In addition, FDOT is responsible for determining the functional classification of state roads within the City. The City's Public Works and Engineering Director, or designee, serves as principal liaison with FDOT for roadways, the airport, and rail facilities.

FLORIDA DEPARTMENT OF HEALTH

Florida's Department of Health (DOH) is responsible for the health and safety of all citizens and visitors to the state. As a public health agency, the Department is charged with monitoring the health status of Floridians, diagnosing and investigating health problems and mobilizing local communities to address health-related issues. The Department develops policies and plans that support public health goals, enforces laws and regulations that protect the public's health, links people to needed health care services and provides services where necessary to assure access. The Department also provides specialized assistance to pregnant women, infants and children with special health care needs, and licenses and regulates health care practitioners. The City principally coordinates through the regional office and through the County Health Department, which incorporates not only conventional public health functions but also environmental health. DOH is charged with managing a broad range of environmental issues, including septic tank regulation, water quality, and pollution control.



FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES

The Department of Children and Families (DCF) is unique among state agencies because it is composed of locally-designed and operated entities that meet the special needs of the communities they serve. The City principally coordinates through the Circuit 9 of the Central Florida regional office of DCF. District 9 includes Orange and Osceola counties. The City coordinates with DCF on issues surrounding delivery of rehabilitative social and medical services for children, youth, family, and elderly, including services directed toward special needs.

FLORIDA FISH AND WILDLIFE CONSERVATION COMMISSION

The Florida Fish and Wildlife Conservation Commission (FWWCC) monitors water conditions and wildlife associated with Lake Tohopekaliga, Shingle Creek, and Mill Slough. The Commission continues to monitor water quality and fish populations in this important waterbody. The Commission also reviews projects that may have potential negative impacts on local fish and wildlife habitats, or that may intrude and disturb habitats occupied by listed species.

FLORIDA DEPARTMENT OF STATE

The City of Kissimmee coordinates with the Florida Department of State primarily on issues related to State archives and records, historic sites and properties, libraries, and fine arts. The City works with the Division of Historical Resources in addressing comprehensive planning issues involving historical and archaeological sites of significance. The Department of State is also a City source for obtaining rules and regulations promulgated by State agencies. Similarly, the City coordinates with the Department of State in carrying out regulatory procedures of State administrative law.

FLORIDA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES

The City of Kissimmee coordinates with the Florida Department of Agriculture and Consumer Services (DOACS), Division of Forestry, as well as its Agriculture Agent Extension Service, both of which maintain personnel within Osceola County. The City staff and residents receive technical assistance, consumer related services, and publications that address a broad range of special services provided by DOACS. The Division of Forestry manages the growth and preservation of State woodlands within Osceola County, as well as authorizes controlled burning of grasslands, and flatwood understories. The extension office has also assisted local governments in the promotion of eco-tourism and the development of the county-wide ad hoc greenways and trails sub-committee.

COORDINATION MECHANISMS AND POTENTIAL COORDINATION NEEDS

The City of Kissimmee has several different outlets for formal coordination and binding agreements, as well as informal activities performed at the administrative level. This subsection describes existing intergovernmental coordination mechanisms.

INTERLOCAL AGREEMENTS

A principal method by which governmental entities engage in enforceable agreements is the interlocal agreement (ILA). The City maintains agreements with entities as varied as special districts and Charter counties, and enters into these agreements as formally executed legal documents binding each of the signing parties to a set of agreed upon actions.

As noted above, the City maintains an ILA with the Tohopekaliga Water Authority for the provision of water and wastewater services, as well as several ILAs with the School Board and the other local governments in Osceola County for public school planning. The City of Kissimmee and Osceola County have an ILA that addresses the provision of fire rescue services, whereby each agency will cover areas closest to their facilities regardless of jurisdictional boundaries in order to maintain the health, safety, and welfare of residents. Additionally, the City and County maintain an ILA to jointly manage lands purchased for resource management. The Shingle Creek Regional Park is among these jointly maintained areas, and both entities work cooperatively to implement the park's management plan.

The City of Kissimmee and Osceola County also maintain an ILA with a private company regarding operation and maintenance of the solid waste collection and disposal system. Under the terms of the agreement, the City maintains responsibility for collecting solid waste within its incorporated area and uses the County's transfer sites prior to deposition at the privately owned landfill site in Holopaw.

The City and County also maintain ILAs regarding the collection and distribution of development

impact and mobility fees and the county's Public Service Taxes. As a result, the City agrees to charge County residents the same amount as City residents for the use of City recreational facilities, and the City provides a portion of transportation fees to the County for road maintenance and construction.

The City of Kissimmee and Osceola County entered into an ILA authorizing the County to develop a local hazard mitigation plan for the county. The county developed a single, unified local mitigation strategy to pre-identify and prioritize hazard mitigation projects in unincorporated and municipal local government jurisdictions. The City cooperated with the County in developing the Local Mitigation Strategy (LMS), and DEO was also instrumental in development of the LMS, which has in turn become part of the Statewide Hazard Mitigation Strategy.





There are several ILAs between the City, and the City of St. Cloud, Osceola County, and the Osceola County School Board. These agreements include the development of a Countywide Parks and Recreation Master Plan, selection of a lobbyist to promote the area's legislative interests, a school impact fee ordinance, an economic development incentive plan, and an agreement to extend the one-cent sales tax and to share the revenue generated with each of the four entities. These governmental bodies meet quarterly to discuss issues that require or impact intergovernmental coordination, which has increased the effectiveness of intergovernmental coordination efforts by the City.

The City maintains a score of additional agreements, all of which help to maintain achieve the goals within the Comprehensive Plan.

JOINT PLANNING INITIATIVES

The City of Kissimmee actively supports the ECFRPC, including through the participation of elected officials and staff on boards and committees. City staff assists the ECFRPC, and also the County and the School Board, in coordinating land use, population, public school student population, and housing data.

The City also actively supports MetroPlan Orlando, the region's Metropolitan Planning Organization (MPO). One of the City's commissioners serves on the MetroPlan Orlando Board, while staff members represent the City on several MetroPlan committees and sub-committees. These committees and boards address various transportation needs throughout the region. In addition to MetroPlan, the City also supports LYNX, the Central Florida Regional Transportation Authority. LYNX provides bus service to the area. The City shares a portion of its gas tax revenue with LYNX in return for bus service. The City coordinates with LYNX regarding various mass transit issues and the development of new routes within the City. Through transportation related the committees, the City also coordinates with the Central Florida Commuter Rail Commission responsible for SunRail funding.

The City of Kissimmee has a formal agreement with the South Florida Water Management District (SFWMD) whereby the SFWMD reviews all site plans within the City of Kissimmee. The primary focuses of the SFWMD reviews are to:

- Determine and enforce acceptable surface water management standards;
- Assure enforcement of applicable water quantity and quality standards;
- Assist in floodplain management; and
- Assure preservation of wetlands.

DISPUTE RESOLUTION

If the City and another governmental entity or agency cannot come to agreement on an issue of concern, the City has determined that the ECFRPC is the body through which intergovernmental disagreements are to be settled – principally through mediation – unless another entity is agreed upon by both parties to the dispute. If such disputes cannot be resolved through mediated discussions, or other techniques used by the regional planning council, the City could take more formal judicial actions, but such steps are costly in time and resources.

ADMINISTRATIVE-LEVEL COORDINATION ACTIVITIES

Osceola County assists the City of Kissimmee in enforcing the Federal Aviation Administration height regulations, including locally adopted airport approach zone regulations, by reviewing all site plans within unincorporated areas situated within the boundaries of the airport approach zones. This review process assists in preventing hazards to air navigation which otherwise might occur without more prudent management. The City and County also reciprocate in reviewing site plans adjacent to respective common boundaries to determine whether the developments will have negative impacts on their respective public facilities.

The City of Kissimmee and the Osceola County School Board maintain site plan review coordination, and to maintain compliance with the City's Land Development Code and State law. In addition, staff from the School Board participate on the City's Development Review Committee to determine whether a development proposal will produce traffic impacts, increased student enrollments, or otherwise impact school facilities in the Concurrency Service Area of a proposed development.

ENHANCING INTERGOVERNMENTAL COORDINATION

The City of Kissimmee has identified several intergovernmental issues that may require additional or heightened levels of coordination. The City's vision of an interconnected multimodal transportation system relies heavily on continued cooperation and communication between LYNX, Osceola County, MetroPlan, and the FDOT. These coordination activities may be specifically determined in the future and included as policies in the Comprehensive Plan, or they may be included in a formal ILA.

The City's involvement with the County and other regulatory agencies, with respect to addressing other issues that may arise, are ongoing. The City of Kissimmee will continue to coordinate with the entities and agencies listed in this Element regarding multi-jurisdictional issues involving growth and land development, the supply and provision of public facilities and services, and resource conservation. Each Element of this Comprehensive Plan describes proactive approaches for maintaining and refining coordination activities and processes that may provide more effective services or management, depending on the situation. In order to promote and further the regional and local visions, these approaches will be applied to solve coordination issues and/or conflicts, as appropriate.



SUMMARY

This element identifies the entities and agencies with which the City primarily coordinates, and provides a description of those coordination activities. The formal and informal coordination mechanisms established between these entities and the City are essential for the continued provision and maintenance of services, as well as regulatory activities that help the City maintain its vision and sense of character, and protects the natural environment and natural resources.